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[TENTATIVE] ORDER GRANTING MOTIONS TO COMPEL DEPOSITIONS OF ANTONIO AND GISEL VALERIO'S DEPOSITIONS and GRANTING PLAINTIFF'S PROTECTIVE ORDER IN PART

I. INTRODUCTION

Plaintiff David Carrazco sustained injury from electric shock on October 26, 2022, at 3801 East Foothill Boulevard, Pasadena, CA 91107. Plaintiff was performing work on an elevator pit construction when the injury occurred. Plaintiff was holding a chain that came in contact with a live, exposed wire in the elevator pit. Plaintiff alleges his injuries were the result of Defendants Swanson & Dudley, Inc. ("Swanson") and Parkway Construction GP, LLC's ("Parkway") negligence. On August 29, 2023, Plaintiff filed a complaint against Swanson and Parkway alleging a single cause of action for negligence.

On November 22, 2023, Parkway filed a Cross-Complaint for negligence, equitable indemnity, express indemnity, implied indemnity, apportionment of fault, and declaratory relief. On December 4, 2023, Parkway filed an amendment to the Cross-Complaint naming MD Steel, Inc. ("MD Steel") as a cross-defendant.

On August 5, 2026, Swanson filed separate motions to compel the depositions of nonparties Gisel Valerio and Antonio Valerio. On August 14, 2026, Plaintiff filed a motion for protective order concerning the Visual Mediation Brief and recorded interviews prepared in connection with mediation. On August 17, 2026, Plaintiff filed a consolidated opposition to Swanson's motions to compel, and on August 21, 2026, Swanson filed a consolidated reply.

Because the three motions arise from the same underlying discovery dispute concerning the scope of mediation confidentiality, the Court addresses them together.

II. LEGAL STANDARD

C.C.P. §2025.480 provides, in pertinent part, as follows:

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition and shall be accompanied by a meet and confer declaration under Section 2016.040.

(c) Notice of this motion shall be given to all parties and to the deponent either orally at the examination, or by subsequent service in writing. If the notice of the motion is given orally, the deposition officer shall direct the deponent to attend a session of the court at the time specified in the notice.

(j) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with

substantial justification or that other circumstances make the imposition of the sanction unjust. commencing with Section 2023.010) in favor of that party and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

A responding party may move for a protective order with respect to interrogatories, requests for production of documents, requests for admissions, and depositions and a court may make any order that justice requires to protect a party from "unwanted annoyance, embarrassment or oppression or undue burden and expense." (Code Civ. Proc., §§ 2025.420, 2030.090, 2031.060, 2033.080.) The burden of proof is on the party seeking the protective order to show "good cause" for the order he or she seeks. (Fairmont Insurance Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

III. ANALYSIS

Swanson moves for three orders (1) compelling the further deposition of nonparty Gisel Valerio and answers to deposition questions, and (2) compelling the deposition of nonparty Antonio Valerio. Plaintiff David Carrazco separately moves for a protective order concerning the mediation-privileged Visual Mediation Brief.

Because the three motions arise from the same underlying discovery dispute and present substantially overlapping issues concerning the scope of mediation confidentiality, the Court addresses them together in this tentative ruling.

Compelling depositions of Antonio and Gisel Valerio

Swanson moves to compel Gisel Valerio to sit for a continued deposition and answer questions concerning her communications with Plaintiff and Plaintiff's counsel. Swanson contends it does not seek disclosure of the Visual Mediation Brief itself, settlement negotiations, or other mediation communications, but instead seeks to determine whom Valerio spoke with, when those communications occurred, and what was discussed.

Gisel Valerio's deposition commenced on July 23, 2026. During the deposition, Swanson's counsel questioned Valerio concerning whether she had spoken with an attorney or anyone associated with Plaintiff's counsel's office. According to Swanson, Plaintiff's counsel objected to further questioning concerning those communications, instructed Valerio to leave the Zoom deposition, and suspended the deposition. Swanson contends Plaintiff's counsel thereafter also prevented Antonio Valerio's separately noticed deposition from commencing. (Motion, pp. 1-5.)

Swanson also moves to compel Antonio Valerio's deposition, that did not end up occurring because Plaintiff's counsel instructed that his deposition would not proceed for the same reasons underlying the suspension of Gisel Valerio's deposition. (Motion, pp. 3-4.)

Plaintiff opposes both motions on substantially the same ground: the disputed questions seek disclosure of communications made in connection with recorded interviews prepared specifically for the October 20, 2025, mediation and are therefore protected by Evidence Code section 1119. (Opposition, pp. 2-5.)

Plaintiff further raises a separate procedural issue as to Antonio's deposition, arguing that because his deposition never commenced before the discovery cutoff, any deposition taken after August 31, 2026, requires a stipulation or leave of court under Code of Civil Procedure section 2024.050, which Swanson did not request in its moving papers. (Id. at p. 8.) In reply, however, Swanson addresses the section 2024.050 factors and argues that leave should be granted if necessary. Plaintiff's own motion for protective order likewise requests leave under section 2024.050 to the extent necessary to complete the Valerios' depositions. (Reply, p.8; PO Motion, p. 9.)

The Court finds good cause to permit both depositions to proceed. The dispute here is narrow. Plaintiff does not dispute that the Valerios may be questioned about facts within their personal knowledge or communications unrelated to the mediation. The dispute is over questions concerning the substance of the interviews prepared for the mediation.

Gisel's deposition may therefore resume. Swanson may question her about facts within her personal knowledge and communications unrelated to the mediation but may not require her to recount or describe the substance of the recorded interview prepared for the mediation or other communications protected by Evidence Code section 1119.

The same applies to Antonio. Although his deposition did not begin before the discovery cutoff, the Court finds good cause under Code of Civil Procedure section 2024.050 to allow it to proceed. Antonio was subpoenaed and his deposition was scheduled before the cutoff but did not go forward because of the dispute that arose during Gisel's deposition. Given these circumstances, and because the deposition can be completed without interfering with the September 29, 2026, trial date, the Court finds good cause to reopen discovery for the limited purpose of taking Antonio's deposition.

Thus, the motions to compel the depositions of the Valerios are GRANTED, subject to the limitations set forth above

Protective order

Plaintiff also moves for a protective order precluding questioning concerning the contents of the interviews recorded for in the Visual Mediation Brief. Plaintiff argues the interviews were conducted specifically for the October 20, 2025, mediation are therefore protected under Evidence Code section 1119.

For the reasons discussed above, the Court agrees in part. The recorded interviews and communications made for the purposes of preparing those interviews for mediation are protected from discovery. However, that protection does not extend to facts independently known by the witnesses or communications unrelated to the mediation because those same facts may have been discussed during the interviews.

Given this, the motion for protective order is GRANTED in part. The parties may not question witnesses about the substance of the recorded interviews or otherwise require them to recount, describe or paraphrase communications made for purposes of the mediation. The motion is otherwise DENIED. Nothing in this order prevents questioning concerning facts within the witness's independent personal knowledge or communications unrelated to the mediation. In addition, as indicated by this Court during the IDC, defense counsel may ask the witnesses about contacts with Plaintiff's counsel and conversations with Plaintiff's counsel, with the exception of any conversations related to mediation or the preparation of the mediation video.

Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion for protective order, unless it finds that the party subject to the sanction acted with substantial justification or that other

circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2025.420, 2025.480.)

Here, both sides request monetary sanctions. Given the nature of the dispute and the Court's ruling granting relief only subject to the limitations discussed above, the Court finds that both sides acted with substantial justification.

Thus, the parties' requests for monetary sanctions are DENIED.

IV. CONCLUSION & ORDER

The Court GRANTS Swanson's motions to compel the deposition of Gisel Valerio and Antonio Valerio, subject to the limitations set forth above. The Court grants leave to reopen discovery for the limited purpose of taking Antonio Valerio's deposition.

The Court GRANTS IN PART and DENIES IN PART Plaintiff's motion for protective order. The parties may not question witnesses concerning the substance of the recorded interviews contained in the Visual Mediation Brief or other communications made for purposes of the mediation. Nothing in this order prevents questioning concerning facts within a witness's independent personal knowledge or communications unrelated to the mediation.

The Court further DENIES the parties requests for monetary sanctions.

Swanson is to give notice.

Dated: September 9, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT